

Matter Pack — dpo

Template T1 (DPO / s.111C stay) · generated 2026-07-14 · workflow stage: critique · Metis is a document-organisation and drafting assistant. It is not a law firm and does not provide legal advice.

1 • Triage summary

Matter family: child-support court (DPO / s.111C stay). Framework: FCFCOA application. Urgency gate: DPO restricting travel qualifies as an urgency trigger.

2 • Document inventory (T1)

Item	Status	Source system	Affidavit refs
All Services Australia correspondence in the matter	✓ present	CSAOnline	—
DPO copy (s.72D, issued under CSRC Act)	✓ present	Services Australia (admin request / FOI fallback)	Para 16
Income/ATI history showing distortion (7 NOAs, 2018-19 to 2024-25)	✓ present	myGov → ATO	Para 19
One-off income event documentation (Tempe sale + CGT schedule + net proceeds)	✓ present	Conveyancer/accountant records	Para 19, Para 23B
Current income evidence (workers comp + DSK business income)	● partial	Insurer payment summary + business records	Para 23B, Para 24(a)
Bankruptcy status (AFSA petition)	✓ present	AFSA / NPII	Para 23C
Travel necessity evidence (hardship-based)	● partial	Client records	—
Proposed interim payment evidence (defensible per Critique F4)	● partial	Business records	Para 24(a)
Prior change-of-assessment applications + rejection reasons	✓ present	CSAOnline / client records	—
Trust interests — full disclosure (Kritsotakis Family Trust)	✓ present	ASIC Connect / trust deed / accountant	Para 23C

3 • Draft register

Draft	Last modified
00_FILL_IN_CHECKLIST.md	2026-06-17
01_initiating_application_CONTENT.md	2026-06-18
02_affidavit.md	2026-06-19
03_covering_letter_services_australia.md	2026-06-17
04_cover_letter_urgency.md	2026-06-18
05_email_alice_russell_bankruptcy_transfer.md	2026-06-20
06_sa_dpo_copy_request.md	2026-06-01
07_sa_foi_dpo_request.md	2026-06-01
08_wesley_tempe_proceeds_request.md	2026-06-17
09_affidavit_paras_prestaged_2026-06-01.md	2026-06-01

10_sa_8b_extension_request_2026-06-16.md	2026-06-17
11_sa_8b_substantive_response_2026-06-22.md	2026-07-08
12_email_case_manager_document_request.md	2026-06-18
13_request_to_brooke_phillips_psychologist_letter.md	2026-06-18
14_followup_konstan_wpi_appeal.md	2026-06-18
15_dpo_revocation_DAC_request.md	2026-06-17
16_sa_8b_further_extension_request_2026-06-22.md	2026-06-22
16_trust_no_control_evidence_pack.md	2026-06-18
17_helen_meeting_list_PRINT.md	2026-06-19
17_questions_for_helen_parkinson.md	2026-06-18
18_s72Q_DPO_appeal_CONTENT.md	2026-06-18
19_bankruptcy_reasons_statement.md	2026-06-18
DSK-XERO-INCOME-FINDINGS-2026-06-17.md	2026-06-19
HELEN-PARKINSON-MEETING-BRIEF-2026-06-19.md	2026-06-17
HELEN-bybit-xrp-loss-onepager.md	2026-06-20
INFO-TO-GATHER-MASTER.md	2026-06-18
INPUTS-FROM-PETER-2026-06-17.md	2026-06-17
sarah-asset-income-research-2026-06-17.md	2026-06-17

4 • Latest adversarial critique

****DRAFT – FOR REVIEW BY YOUR SOLICITOR****

Adversarial critique – dpo (2026-07-14)

This is an adversarial critique of the provided materials.

Exposure Summary:

The self-represented party faces significant risks of their application being dismissed or delayed due to internal inconsistencies, unsupported assertions, and a fundamental misunderstanding of key legal principles governing child support and DPOs. A sceptical Registrar or opposing party would likely highlight the lack of credible, documented financial figures, the mischaracterisation of trust control, and the procedural errors regarding the DPO challenge.

F1: ****severity****: 🚫 critical

****weakness****: The core argument that Peter does not control the Kritsotakis Family Trust is directly contradicted by the trust deed and ASIC records, which show Peter as the "Principal" with the power to appoint/remove the trustee, and as the sole shareholder of the corporate trustee. This undermines the credibility of the entire "no control" defence and the associated financial assertions.

****document/paragraph****: `drafts/16\_trust\_no\_control\_evidence\_pack.md` (Finding: Peter IS the "Principal" = he controls the trust; SHARE-CONTROL QUESTION ANSWERED: Peter holds ALL 100 ordinary shares).

`drafts/02\_affidavit.md` Para 23C(a) ("I have no controlling interest in the Trust").

`drafts/11\_sa\_8b\_substantive\_response\_2026-06-22.md` Para 6 ("DSK is carried on by a family trust that I do not own or control").

****evidence or fix****: Amend all documents (affidavit, 8B response) to accurately reflect Peter's control of the trust via his Principal role and shareholding until bankruptcy. Frame the defence around hardship (s.117(4)) and the prospective loss of control upon bankruptcy, not an assertion of no control in the present. Discuss with solicitor.

F2: ****severity****: 🚫 critical

****weakness****: The Initiating Application (Order 4) and Cover Letter as to Urgency (Para 2) incorrectly assert that s.111C can stay a Departure Prohibition Order (DPO). This is a fundamental legal error that will lead to that specific order being dismissed, potentially weakening the entire application and consuming court time on an unmeritorious point.

****document/paragraph****: `drafts/01\_initiating\_application\_CONTENT.md` Order 4 (redacted: "WRONG: s.111C cannot

stay a DPO."`. `drafts/04_cover_letter_urgency.md` Para 2 (redacted: "DELETE this DPO–stay limb. s.111C does NOT permit staying a DPO.").

****evidence or fix**:** Delete all references to staying the DPO under s.111C from the Initiating Application and urgency letter. Ensure the separate s.72Q appeal and administrative requests (s.72I/s.72L) are correctly framed and pursued as the appropriate mechanisms to challenge the DPO. Discuss with solicitor.

F3: ****severity**:** 🟡 critical

****weakness**:** The current affidavit and 8B response contain placeholders or outdated figures for Peter's personal income from DSK/the trust, some of which are explicitly flagged as "DO NOT SWEAR" or are contradicted by Xero data. Lodging documents with these inconsistencies or unsupported assertions will severely damage credibility.

****document/paragraph**:** `drafts/02\_affidavit.md` Para 19 ("⚠️ DO NOT SWEAR – confirm with accountant Ms Helen Parkinson the amount AND the nature of the income I receive..."). `drafts/11\_sa\_8b\_substantive\_response\_2026-06-22.md` Para 3 (contains `[PETER: insert lodgement date + assessable-income figure once lodged]`). `drafts/DSK-XERO-INCOME-FINDINGS-2026-06-17.md` ("The conflict: Affidavit... currently state: 'expected annual earnings less than \$40,000.' Xero FY26-to-date net is \$51k (cash) / \$58k (accrual)...").

****evidence or fix**:** Obtain a definitive, reconciled figure for Peter's personal assessable income from DSK/the trust from Helen Parkinson. Update all documents (affidavit, 8B response) with this accurate figure and ensure consistency. Obtain supporting documentation (e.g., Helen's signed letter, tax return) to annex. Discuss with solicitor.

F4: ****severity**:** 🟡 high

****weakness**:** The affidavit relies on a hearsay statement regarding Services Australia's requirement for a court order (Para 16) without written confirmation, making it vulnerable to challenge. While a letter has since been received, the affidavit text still references a phone call.

****document/paragraph**:** `drafts/02\_affidavit.md` Para 16 ("I was told by Services Australia on the phone..."). `drafts/00\_FILL\_IN\_CHECKLIST.md` Item 4 ("SA letter 1 July 2025; affidavit Para 16 + Annexure E.").

****evidence or fix**:** Amend affidavit Para 16 to accurately reflect the content of the 1 July 2025 Services Australia letter and annex it as "E". Ensure the specific section of the Act cited for the 18-month cap (s.98S(3B)) is correct. Discuss with solicitor.

F5: ****severity**:** 🟡 high

****weakness**:** The affidavit (Para 23B) lacks specific dollar figures for the dissipation of the Tempe property proceeds, relying on a qualitative narrative. This makes the claim of dissipation difficult to verify and susceptible to an opposing argument that funds were simply "spent" without accountability.

****document/paragraph**:** `drafts/08\_wesley\_tempe\_proceeds\_request.md` (Purpose: "convert the qualitative dissipation narrative into a specific dollar breakdown"). `drafts/INFO-TO-GATHER-MASTER.md` Item A5 ("Tempe net-proceeds breakdown...").

****evidence or fix**:** Obtain a detailed, dollar-figure breakdown of the Tempe sale proceeds and their application from Helen Parkinson. Update affidavit Para 23B with these specific figures and annex supporting documentation (e.g., accountant's statement). Discuss with solicitor.

F6: ****severity**:** 🟡 high

****weakness**:** The affidavit (Para 22) and bankruptcy statement (drafts/19) reference a debt of ~\$200,000 to Peter's parents for discharged rental arrears, but this is contradicted by the "no control" evidence pack (drafts/16) which states the parental loan is to the company/trustee level, not Peter personally. This inconsistency is critical for bankruptcy and financial disclosure.

****document/paragraph**:** `drafts/02\_affidavit.md` Para 22 (refers to "debt of approximately \$200,000 owed to my parents in respect of rental arrear"). `drafts/19\_bankruptcy\_reasons\_statement.md` (Full version, Item 4: "leaving rental arrears of over \$200,000 which my parents discharged on my behalf and which I now owe to them."). `drafts/16\_trust\_no\_control\_evidence\_pack.md` Part 1 (CLARIFICATION: "The control lever is one level up... who controls the company..."). `drafts/17\_helen\_meeting\_list\_PRINT.md` Item 3 ("Confirm my parents' loans into the company = more than \$100,000 (company/trustee level, not my personal debt).").

****evidence or fix**:** Clarify with Helen Parkinson whether the \$200,000 rental arrears debt is personally owed by Peter or by the company/trust. Ensure all documents (affidavit, bankruptcy statement, 8B response) are consistent and accurately reflect the nature of this debt. Discuss with solicitor.

F7: ****severity**:** 🟡 medium

****weakness**:** The affidavit (Para 22A, NEW) claims post-separation contributions of ~\$35,000 to Sarah for children's/household expenses, with an expectation of repayment. However, the documentation task highlights the difficulty in characterising this as a debt and the need for evidence that Sarah agreed to repay. Without such evidence, it risks being seen as voluntary contributions or a child support credit (which has specific limits and timeframes).

****document/paragraph**:** `drafts/INFO-TO-GATHER-MASTER.md` Item C9-12 ("Evidence Sarah said she'd repay... the linchpin; without it, it's your word vs hers.").

****evidence or fix**:** Obtain documentary evidence (e.g., texts, emails) where Sarah explicitly agreed to repay these contributions. If no such evidence exists, reframe the assertion to reflect the lack of a formal debt and consider its relevance as a child support credit (with its limitations) or as context for Peter's financial conduct. Discuss with solicitor.

F8: ****severity**:** 🟡 medium

5 • Open questions for the solicitor

- **Current income evidence (workers comp + DSK business income)** — partial; retrieval: upload via Insurer payment summary + business records. WC @ \$1,680/wk gross since Jan 2024
- **Travel necessity evidence (hardship-based)** — partial; retrieval: upload via Client records.
- **Proposed interim payment evidence (defensible per Critique F4)** — partial; retrieval: upload via Business records. Rewritten from \$50/week (read as contempt) to 50% net DSK income

 This is a legal call, not documentation. Discuss with your solicitor (or book a duty-lawyer consult) before deciding.